THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NO. 2026-31

Being a by-law to establish a Procedure for the Appointment of an Eligible Elector to Fill a Council Vacancy under the *Municipal Act* for the Corporation of the Township of Nipissing.

WHEREAS Section 263(1) of the *Municipal Act* provides that a Council shall fill the vacancy by choosing one of two methods provided in the *Act*;

AND WHEREAS Council of the Township of Nipissing has the option under 263(1) of the Act to (a) fill the vacancy by appointing a person who has consented to accept the office if appointed; or (b) require a By-election to be held to fill the Vacancy in accordance with the *Municipal Elections Act*, 1996.

AND WHEREAS Council deems it open and transparent to create a comprehensive procedure for the selection of the Eligible Elector to fill a Council Vacancy;

NOW THEREFORE be it resolved that the Council of the Corporation of the Township of Nipissing hereby enacts as follows:

1. The Procedure to Appoint an Eligible Elector to Fill a Council Vacancy is hereby incorporated into and forms an integral part of this By-law as "Appendix A".

2. That this by-law shall come into effect on the date of passing.

READ A FIRST, SECOND AND THIRD TIME AND PASSED THIS 11TH DAY OF AUGUST, 2026.

Dave Yemm, MAYOR

Kris Croskery-Hodgins,
Municipal Administrator-Clerk-Treasurer

"APPENDIX A" TO BY-LAW NO. 2026-31

PROCEDURE TO APPOINT AN ELIGIBLE ELECTOR TO FILL A COUNCIL VACANCY

Purpose

The purpose of this procedure is to provide the steps to be followed to ensure an open and transparent process when filling a Council vacancy by appointing an Eligible Elector.

General

The Clerk, or designate, shall be responsible for interpreting and, where appropriate, facilitating the appointment application process.

Any individual filling the vacancy must be an Eligible Elector under the *Municipal Elections Act*.

Section 264 of the Municipal Act, 2001, provides that the person appointed or elected to fill a Vacancy shall hold the office for the remainder of the term of the person they replaced.

To be considered for Appointment, a Candidate must meet all the requirements to hold the Vacant office, and must not otherwise be disqualified from holding that office.

It is the Candidate's sole responsibility to meet any deadline or otherwise comply with any requirement established by the Council or the Clerk as part of the Appointment process.

In making its determination, Council will consider the costs and timelines associated with filling a Vacancy by appointment or by By-election.

Definitions

a) **"Act"** means the *Municipal Act*, S.O. 2001, c. 25, as amended.

b) **"Appointment"** means the appointment of a qualified individual to fill a Vacancy on Council for the remainder of the current Council term.

c) **"By-election"** means an election held to fill any Vacancy in accordance with the provisions of Section 65 of the *Municipal Elections Act*, 1996, as amended.

d) **"Candidate"** means an individual seeking to be appointed to fill a Vacancy in the office of Councillor, having met the eligibility requirements and who has completed the requisite documentation as required by this procedure.

e) **"Chair"** means the member of Council presiding at the Council meeting to appoint an individual to fill a Council Vacancy.

f) **"Clerk"** means the Clerk or the designate of the Township of Nipissing as appointed by Council.

g) **"Council"** means the Council of the Township of Nipissing.

h) **"Eligible Elector"** has the same meaning as subsection 17(2) of the Municipal Elections Act, namely a person:

   a. Who is a resident of the Township of Nipissing, or an owner or tenant of the land in the Township or the spouse of such an owner or tenant;

   b. Who is a Canadian Citizen;

   c. Who is at least 18 years of age; and

   d. Who is not prohibited from voting under any other Act or from holding office under the *Municipal Elections Act*.